GEORGE BHUDHE
and
EMELY CHINHANGA
versus
SAKHILE DUBE
and
SENSENE INVESTMENTS (PVT) LTD
and
PINNACLE PROPERTY HOLDINGS
and
UDICORP
and
THE MESSENGER OF COURT N.O

HIGH COURT OF ZIMBABWE
MAWADZE DJP & WAMAMBO J
HARARE 15 May and 19 November 2025

Civil Appeal

S Uchena, for the appellant.
F G Gijima, for the 1st respondent.
No appearance for the 2nd , 3rd, 4th and 5th respondents

WAMAMBO J:

[1] This is an appeal against the whole judgment of the Magistrates' Court, which dismissed the appellants' application for rescission of a default judgment under case number HREC-CG 2115/23. The default judgment ordered, in substance, the eviction of the second appellant, Emely Chinhanga, from Stand 9898, Stoneridge Township, Harare, together with all those claiming occupation through her.

[2] The appeal arises in circumstances where the appellants persistently contended that no proper service of summons was ever effected upon the second appellant, and that the default judgment was therefore a nullity. The record supports that contention.

Grounds of Appeal

[3] The appellants' grounds of appeal, as captured in the notice and grounds of appeal, are in the following terms:

1. The Court aquo grossly erred and misdirected itself at law and fact in dismissing the appellants' application for rescission of default judgement alleging lack of merit, when no proper service of summons was effected upon the second appellant.

2. The court aquo grossly erred in not making a finding that the appellants had successfully rebutted the contents of the Return of service through clear, incontrovertible and satisfactory evidence. An instructing letter dated the 7th day of August 2024 could not have resulted in service of summons on the 29th of July 2024. The Messenger of Court cannot time travel.

3. The Court a quo grossly erred and misdirected itself both at law and fact by effectively holding that number 2781 Glen Norah B is the address of service for the second appellant. The alleged address is alien to the 2nd appellant, a fictitious address simply made to snatch a default judgement. The second appellant is clear that her address of service was care of her legal practitioners of record, Messrs L.T Muringani Law Practice.

4. The Court *a quo* grossly erred and misdirected itself in holding that the application was not justifiable when the default court order contains relief that was never sought by the plaintiff in her summons and particulars of claim. It is trite that the Court cannot grant relief that was not specifically sought by the parties in the pleadings.

5. The Court *a quo* erred and misdirected itself both at law and fact by effectively holding that the second appellant was in wilful default. No service was ever effected upon her personally or at her chosen address of service that is upon her legal practitioners of record.

6. The decision of the Court *a quo* is so outrageous in its defiance of logic or common sense that no reasonable Magistrate applying his or her mind to the facts could have reached such decision. Even the first Respondent's papers attest to the fact that as at the 7th day of August 2024 there had not been proper service of any summons upon the second appellant. Despite

that, the court aquo somehow ruled that proper service was effected upon the second appellant on the 29th of July 2024, and at an address alien to the second appellant.

7. The Court aquo grossly erred in holding that the second appellant was in wilful default when there has never been any summons against the second respondent, making averments against her, and or claiming relief against her. No summons was ever served upon the second appellant.

8. The Court *a quo* grossly erred in failing to note that the appellants only became aware of the order granted in default upon service of the Writ of execution and not any other time before. No evidence or submissions were presented to disprove that fact.

Brief Factual Background

[4] The 1st respondent issued summons in the Magistrates' court against the first appellant, seeking his eviction from Stand 9898 Stoneridge Township. The first appellant entered appearance to defend and filed a plea denying that the first respondent was in lawful occupation and alleging that the property belonged to his mother, the second appellant.

[5] A subsequent joinder application brought in the magistrates' court resulted in an order joining the second appellant as a defendant, together with Sensene Investments (Pvt) Ltd, Pinnacle Property Holdings and UDICORP.

[6] It is common cause that the second appellant is said to have been served with summons through the Messenger of Court. The return of service recorded that service had been effected on "a cousin, Chipo Chinhanga" at 2781 Glen Norah B. This address is emphatically denied by the second appellant as being hers. She states that her address for service was at her legal practitioners, Messrs L.T. Muringani Law Practice.

[7] Significantly, the record contains a letter from the first respondent's own legal practitioners, dated 7 August 2024, addressed to the Messenger of Court, expressly noting that earlier service had been improperly effected on the first appellant and directing the Messenger to re-serve the summons on the second appellant at 2781 Glen Norah A.

[8] Despite this, a return of service later surfaced reflecting service on 29 July 2024 on "Chipo Chinhanga" at Glen Norah B, and the court *a quo* relied on this return of service to hold that service was proper and that the 2nd appellant was in wilful default.

[9] The appellants only became aware of the default judgment when the Messenger of Court served a notice of removal and a warrant of ejectment at the Stoneridge property in January 2025, prompting an urgent stay application and thereafter the application for rescission.

The Law

[10] Proper service of summons is not a mere technicality. It is the jurisdictional gateway through which a court may validly exercise power over a defendant. A judgment granted without proper service is void.

[11] It is settled in our law that a return of service is prima facie, and not conclusive, proof of service. See *Mukangara* v *TelOne* HH 237 -15 where the court held that such a return can be impeached by clear and satisfactory evidence. To similar effect is *Gundani* v *Kanyemba* 1988 (1) ZLR 226 (SC) @ 229 which emphasised that a return of service may be rebutted.

[12] The Supreme Court held that where no proper service was effected, the default judgment is a nullity and must be set aside. The same approach appears in *Mapedzamombe* v *CBZ* 1996 (1) ZLR 257 (S) and in Common wealth authority such as *Craig* v *Kanssen [1943] KB 256 (CA).*

Analysis

Was there proper service on the 2nd appellant?

[14] The answer is plainly no.

[15] Firstly, the second appellant consistently stated on oath that 2781 Glen Norah B is not her address. She had chosen her legal practitioners' address for service. There was no evidence tendered to gainsay that. No affidavit from the alleged cousin "Chipo Chinhanga" was placed before the court to explain who she is, where she lives, or what she did with the summons.

[16] Secondly, and more tellingly, the first respondent's own legal practitioners wrote to the Messenger of Court on 7 August 2024 pointing out that the summons had been served on the wrong person (the 1st appellant) and instructing that the summons be properly served on the 2nd appellant. That letter is entirely inconsistent with a position that valid service had already been effected on 29 July 2024. Put differently, if service was proper on 29 July 2024, there was nothing to "re-serve".

[17] The appellants were therefore not merely making bald allegations. They produced the respondents' own correspondence, contemporaneous with events, which confirmed that prior service was defective. That evidence was more than sufficient to rebut the prima facie presumption attaching to the return of service.

[18] In these circumstances, the court *a quo's* heavy reliance on the return of service, without engaging with the contradictions and without confronting the effect of the instructing letter, amounted to a serious misdirection. The finding that service had been validly effected upon the second appellant cannot stand.

Could the default judgment stand?

[19] Once it is accepted that the second appellant was never properly served, the default judgment in so far as it affects her is void. There was no jurisdiction over her person. She was entitled, as a matter of natural justice, to be heard before orders affecting her home and proprietary interests were made.

[20] The court *a quo* treated the matter as if it were an ordinary rescission application and went on to weigh "explanation for default" and "prospects of success" under Order 30 and *Saitis & Co* v *Fenlake* 2002 (1) ZLR 378 (S). That was to put the cart before the horse. The explanation for default arises only after it has been established that the defendant was obliged, in law, to act because she had been properly served.

[21] Here, the second appellant was under no such obligation because service was never validly executed upon her. The proper approach is that a judgment entered without proper service is a nullity. The court *a quo* therefore erred in dismissing the application for rescission and in branding the second appellant "wilfully in default".

Other complaints

[22] The appellants also took issue with the fact that the default order granted relief that they say went beyond what was sought in the summons, and that the magistrate treated the second appellant as if she had been a party to the proceedings from inception when the pleadings do not support that. There is substance in these complaints. A court is generally bound by the pleadings and may not grant relief that has not been sought.

[23] It is, however, not necessary for purposes of this appeal to deal exhaustively with the over-reach in the default order. The decisive point is that the order was granted in the absence of jurisdiction over the second appellant. That is sufficient to dispose of the appeal.

Conclusion

[24] The matter that generated so much heat in the court *a quo* is in reality a simple one. The question was not whether the first respondent ultimately has a stronger claim to Stand 9898 than the appellants, nor whether the appellants' defence will eventually succeed. The anterior question was whether the second appellant was ever properly brought before the court.

[25] The documentary record, including the respondents' own instructing letter, shows that she was not. The magistrate's refusal to accept that reality and the dismissal of the rescission application were misdirections warranting this court's interference.

[26] In the result, the following order is made:

1. The appeal succeeds.
2. The judgment of the court *a quo* dismissing the appellants' application for rescission of default judgment is set aside.
3. The default judgment granted under case number HREC-CG 2115/23 is set aside in its entirety.
4. The matter is remitted to the Magistrates' Court, Harare, for hearing of the main action on the merits before a different magistrate.
5. The 1st respondent shall serve the summons on the second respondent at her given address for service, number 12 Hackney Road, Cranborne, Harare within five days from the date of this judgment.

6. The first respondent shall bear the appellants' costs of appeal.

WAMAMBO J: ……

MAWADZE DJP:…….

L T Muringani Law Practice, the appellants' legal practitioners.
F G Gijima & Associates, the first respondent's legal practitioners.